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Case Number: 25AVCV00396 Hearing Date: July 7, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

RANDY ROSHAWN YOUNG,

Plaintiff,

v.

MIRAGE POST ACUTE; WELLSPRINGS POST-ACUTE CENTER; and DOES 1 through 20, inclusive,

Defendants.

Case Number 25AVCV00396

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing:

July 7, 2026

Dept. A-14

Judge William H. Forman

I. Background

The instant case arises from alleged personal injuries sustained by Plaintiff Randy Roshawn Young ("Plaintiff") when he was allegedly attacked at Defendant Mirage Post Acute's, dba Defendant Wellsprings Post-Acute Center, nursing facility by another patient.

On March 26, 2025, Plaintiff filed a Personal Injury Complaint against Defendants Mirage Post Acute, who is doing business as Defendant Wellsprings Post-Acute Center, Angel Lopez, and Does 1 through 20, alleging a single cause of action for general negligence.

On April 22, 2025, Plaintiff filed an amendment to the complaint, naming Defendant Geri-Care V, LLC as Doe 1.

On July 11 and 17, 2025, a request for dismissal as to Defendants Angel Lopez and Geri-Care V, LLC was entered.

On July 16, 2025, Plaintiff's request for entry of default as to Defendants Mirage Post Acute and Wellsprings Post-Acute Center (collectively, "Mirage") was entered.

On August 8, 2025, a stipulation and order to set aside default judgment pursuant to Code of Civil Procedure section 473 was granted.

On November 20, 2025, Mirage filed an answer.

On January 27, March 2, March 12, and April 13, 2026, Plaintiff filed amendments to the complaint, naming Defendants Kenneth Aronson, Kenneth Erenson, the Estate of Kenneth Aronson, and Global Alliance Protection as Does 2-5.

On March 9, 2026, the Court granted the Stipulation RE: Confidentiality allowing Mirage to release the personal identification information of the alleged assailant.

On April 8, 2026, Mirage filed the operative Motion to Compel Arbitration.

On June 17, 2026, Plaintiff filed an opposition.

On June 26, 2026, Mirage filed a reply.

II. Analysis

Standard for Motion to Compel Arbitration – Under California and federal law, public policy favors arbitration as an efficient and less expensive means of resolving private disputes. (*Moncharsh v. Heily & Blasé* (1992) 3 Cal.4th 1, 8-9 (*Moncharsh*); *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.) Accordingly, whether an agreement is governed by the California Arbitration Act or the Federal Arbitration Act, courts resolve doubt about an arbitration agreement's scope in favor of arbitration. (*Moncharsh*, supra, 3 Cal.4th at p. 9; *Comedy Club, Inc. v. Improv West Associates* (9th Cir. 2009) 553 F.3d 1277, 1284; see also *Engalla v. Permanente Med. Grp., Inc.* (1997) 15 Cal.4th 951, 971-72 ["California law incorporates many of the basic policy objectives contained in the Federal Arbitration Act, including a presumption in favor of arbitrability [citation] and a requirement that an arbitration agreement must be enforced on the basis of state law standards that apply to contracts in general [citation]."].) "[U]nder both the FAA and California law, 'arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.'" (*Higgins v. Superior*

Court (2006) 140 Cal.App.4th 1238, 1247.)

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (Engalla, supra, 15 Cal.4th 951, 972.) A petition to compel arbitration must allege both a “written agreement to arbitrate” the controversy, and that a party to that agreement “refuses to arbitrate” the controversy. (Code Civ. Proc., § 1281.2.) It then becomes plaintiff’s burden, in opposing the motion, to prove by a preponderance of the evidence any fact necessary to her opposition. (Ibid.)

“Code of Civil Procedure section 1281.2 requires a trial court to grant a petition to compel arbitration ‘if the court determines that an agreement to arbitrate the controversy exists.’” (Avery v. Integrated Healthcare Holdings, Inc. (2013) 218 Cal.App.4th 50, 59 (Avery), quoting Code Civ. Proc., § 1281.2.) Accordingly, “when presented with a petition to compel arbitration, the court’s first task is to determine whether the parties have in fact agreed to arbitrate the dispute.” (Id., at p. 59.) Generally, on a petition to compel arbitration, the court must grant the petition unless it finds either (1) no written agreement to arbitrate exists; (2) the right to compel arbitration has been waived; (3) grounds exist for revocation of the agreement; or (4) litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (Ibid.; see also Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218-219.) “In these summary proceedings the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (Avery, supra, 218 Cal.App.4th at p. 59; accord Rosenthal v. Great Western Financial Securities Corp. (1996) 14 Cal.4th 394, 413.)

Discussion

Existence of an Arbitration Agreement –

Mirage advances the declaration of Isaiah Navarro, the Admissions Assistant at Mirage who has familiarity with the admission process and the documents executed by residents or their representatives upon admission, including the Arbitration Provision in contention, and the facility’s practices/procedures regarding record maintenance. (Navarro Decl., ¶¶ 1-2.) Mr. Navarro also states it is the standard practice of the facility to explain the Arbitration Agreement’s (“Agreement”) terms and conditions to each resident prior to execution, and residents are informed that execution is voluntary and residency is not conditioned upon consent to the Agreement. (Navarro Decl., ¶ 5.) Residents are provided with a 30-day period post-execution to cancel the agreement, but upon Mr. Navarro’s review of Mirage’s records, Plaintiff has not submitted a written notice of cancellation. (Navarro Decl., ¶ 7.) Mr. Navarro states that he “personally met with Plaintiff on October 23, 2024, to review and explain the admissions packet. I separately explained the Arbitration Agreement. I specifically recall meeting the Plaintiff and reviewing these documents with him.” (Navarro Decl., ¶ 10.) Mr. Navarro explains that prior to execution, Plaintiff undertook a Brief Interview for Mental Status assessment to evaluate his cognitive capacity, which was found to be intact. (Navarro Decl., ¶ 11.)

Plaintiff does not dispute the existence of an arbitration agreement in opposition.

Mirage’s counsel also attests to his submission to opposing counsel of a Formal Arbitration Demand Letter on January 23, 2026, which was unsuccessful. (Williams Decl., ¶¶ 17-18.) Counsel has also attached a copy of said Agreement. (Williams Decl., ¶ 6, Exh. B.)

Mirage has carried its threshold burden to show that an arbitration agreement exists between the parties, and Plaintiff has refused to arbitrate his claims.

FAA applies & Code of Civil Procedure Section 1281.2, subdivision (c) does not bar the Petition –

Plaintiff argues that the Court should deny arbitration under Code of Civil Procedure Section 1281.2, subdivision (c) because the other named Defendants in this action are not signatories to the arbitration agreement and all of Plaintiff's claims arise from the same transaction. (Opp., at p. 4.) Plaintiff cites to *Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 393 & *Avila v. Southern California Specialty Care, Inc.* (2018) 20 Cal.App.5th 835, 844-845, but those cases are distinguishable from the facts here.

In *Cronus*, the Supreme Court explicitly held:

"Our opinion does not preclude parties to an arbitration agreement to expressly designate that any arbitration proceeding should move forward under the FAA's procedural provisions rather than under state procedural law. We simply hold that the language of the arbitration clause in this case, calling for the application of the FAA "if it would be applicable," should not be read to preclude the application of 1281.2(c), because it does not conflict with the applicable provisions of the FAA and does not undermine or frustrate the FAA's substantive policy favoring arbitration."

(*Cronus*, supra, 35 Cal.4th at p. 394.) The Supreme Court did not denounce the express contractual waiver of Code of Civil Procedure section 1281.2, subdivision (c) and the express designation for an arbitration proceeding to move forward under the FAA.

In *Avila*, the Court reiterated that "[t]he procedural aspects of the FAA do not apply in state court absent an express provision in the arbitration agreement," which was missing in that case since the agreement did not "mention the FAA at all, although it [did] mention California law several times." (*Avila*, supra, 20 Cal.App.5th at 840.)

The Court of Appeals in *Valencia v. Smyth* (2010) 185 Cal.App.4th 153, 177 noted that "under the *Rosenthal–Cronus–DIRECTV* trilogy, the FAA's procedural provisions do not apply in state court unless the parties expressly adopt them. The trilogy makes clear that the question ... is whether the parties expressly incorporated the FAA's procedural provisions into their agreements." In *Valencia*, unlike here, California's procedural provisions were applied because the agreement expressly incorporated California law and procedural provisions and did not expressly adopt the FAA's procedural provisions. (*Valencia*, supra, 185 Cal.App.4th at pg. 178.) The Court of Appeals has reiterated multiple times that "'the FAA's procedural rules may apply if the parties expressly agree they do or if the CAA's procedural rules are preempted.'" (*Wright v. WellQuest Elk Grove, LLC* (2026) 119 Cal.App.5th 267, 279, quoting *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 582.)

Here, the Agreement explicitly states in paragraph 7.2 that:

"As a result, the parties agree that this Agreement is to be governed by the Federal Arbitration Act (9 U.S.C. §§1-16) and the procedural rules set forth in the Federal Arbitration Act shall govern any and all arbitration proceedings, including any petition to compel arbitration."

(*Williams Decl.*, Exh. B, pg. 3.)

Paragraph 7.3 states that:

"The parties agree that California Code of Civil Procedure §1281.2(c) is excluded from this Agreement as the parties mutually desire to have any and all disputes submitted to binding arbitration. The parties do not want any claims or related lawsuits not subject to arbitration to impede any and all other claims from being ordered to binding arbitration."

(Id.)

Therefore, based on the above quoted language, it is clear that the parties expressly incorporated the FAA's procedural provisions into their agreements and expressly waived Code of Civil Procedure section 1281.2, subdivision (c).

Accordingly, the Court finds that the FAA's procedural provisions apply here, and Code of Civil Procedure section 1281.3, subdivision (c) does not bar because the agreement expressly waives application of the section.

Enforceability of the Delegation Clause –

Mirage argues that Article 4.1 of the Agreement expressly delegates enforceability questions, like unconscionability, to the arbitration and Plaintiff fails to challenge the provision itself in opposition; thus, as a baseline, the unconscionability argument is invalid here. (Reply., at pg. 6.)

Article 4.1 of the Agreement states:

“The arbitrator, and not any federal, state, or local court or agency, shall resolve all disputes, including without limitation, any disputes regarding the making, execution, enforceability, voidability, revocability, unconscionability, severability, scope, arbitrability, interpretation, waiver, duress, preemption or any other defense to the validity or enforceability of this Arbitration Agreement, as well as resolve the Parties' underlying disputes, as it is the Parties' intent to completely avoid the court system and resolve disputes without any judge or jury.”

(Williams Decl., Exh. B, at pg. 2.)

The United States Supreme Court held in *Rent-A-Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, 72-73 that “unless [Plaintiff] challenged the delegation provision specifically, we must treat it as valid under § 2, and must enforce it under §§ 3 and 4, leaving any challenge to the validity of the Agreement as a whole for the arbitrator;” thus, Defendant's argument that the arbitrator must decide the enforceability challenge was “uncontested” because Plaintiff only challenged the validity of the arbitration agreement as a whole, and not the delegation provision. In *Malone v. Superior Court* (2014) 226 Cal.App.4th 1551, 1559-1560, the Court of Appeals, referencing *Rent-A-Center*, articulated that:

“when a party is claiming that an arbitration agreement is unenforceable, it is important to determine whether the party is making a specific challenge to the enforceability of the delegation clause or is simply arguing that the agreement as a whole is unenforceable. If the party's challenge is directed to the agreement as a whole--even if it applies equally to the delegation clause--the delegation clause is severed out and enforced; thus, the arbitrator, not the court, will determine whether the agreement is enforceable. In contrast, if the party is making a specific challenge to the delegation clause, the court must determine whether the delegation clause itself may be enforced (and can only delegate the general issue of enforceability to the arbitrator if it first determines the delegation clause is enforceable).

Here, Plaintiff has two different challenges that could be called “scope” challenges. The first is that the dispute falls outside the scope of disputes that the parties agreed to arbitrate. This also is often phrased as an arbitrability challenge, in that the dispute is not subject to arbitration. (See Opposition, at 5-6.) However phrased, that challenge is plainly reserved for the arbitrator under the delegation clause. Plaintiff's second “scope” challenge is that the “Other Claims” provision is impermissibly broad in the types of claims and possible claimants it applies to, and is thus unconscionable. (Opposition, at 6.) But the parties also agreed that questions of unconscionability also are reserved for the arbitrator. What Plaintiff has not done is challenge the delegation clause itself as unconscionable or otherwise unenforceable. Under *Rent-A-Center*, the delegation clause is a severable agreement from the arbitration agreement, and therefore the challenge must be directed to that

agreement in particular for the court to find the delegation agreement unenforceable.

As the moving party has shown the existence of an agreement to delegate within an arbitration agreement, and the Plaintiff has not challenged the validity of that agreement, the delegation agreement must be enforced. Plaintiff's challenges to the arbitrability of this dispute and to the unconscionability of the broader arbitration agreement are to be determined by the arbitrator in the first instance. Of course, should the arbitrator determine that the broader arbitration agreement is not enforceable or does not apply to this dispute, then Plaintiff's claims would be referred back to this Court for adjudication.

Accordingly, the Court GRANTS the Motion to Compel Arbitration.[1]

Stay of Current Action –

Pursuant to 9 U.S.C. section 3, if any suit or proceeding upon any issue referable to arbitration under an agreement in writing for such arbitration, the court in which such suit is pending, upon being satisfied that the issue involved in such suit or proceeding is referable to arbitration under such an agreement, shall on application of one of the parties stay the trial of the action until such arbitration has been had in accordance with the terms of the agreement, providing the applicant for the stay is not in default in proceeding with such arbitration. (9 U.S.C. § 3.)

[1] Plaintiff argues in opposition that Mirage did not properly serve this motion on all defendants, including defendants Aronson and the Estate of Aronson, who are not signatories to the Agreement. (Opp., at pg. 2.) Plaintiff does not offer any legal support for his contention that the motion should be denied on this basis. The Court finds the defect to be immaterial and curable by subsequent service. In reply, Mirage states it was not aware of the Aronson defendants' representation at the time the motion was filed and subsequently served the counsel of record. (Reply, at pg. 8.) The Reply has also been served to the Aronson defendants' counsel of record. Should other parties wish to be heard on this matter, the Court would consider a short continuance of the hearing.